

House File 937

H-1183

1 Amend House File 937 as follows:

2 1. Page 1, before line 1 by inserting:

3 <Section 1. Section 80B.11, subsection 1, paragraph h, Code
4 2025, is amended by striking the paragraph.

5 Sec. _____. Section 80B.13A, subsection 1, paragraph a, Code
6 2025, is amended to read as follows:

7 a. "*Final*" means that all appeals through a grievance
8 procedure, civil service action, or other cause of action or
9 procedure available to the officer ~~or civil service~~ have been
10 exhausted.

11 Sec. _____. Section 80B.13A, subsection 2, paragraph c, Code
12 2025, is amended by striking the paragraph.>

13 2. Page 1, line 6, by striking <good> and inserting <just>

14 3. Page 1, line 7, after <reserve peace officer> by
15 inserting <and the action is final>

16 4. Page 1, by striking lines 8 through 20 and inserting:

17 ~~<b. When an employing agency recommends to the council that~~
18 ~~revocation or suspension would be appropriate with regard to a~~
19 ~~current or former employee. A recommendation by an employing~~
20 ~~agency must be in writing and set forth the reasons why the~~
21 ~~action is being recommended, the findings of the employing~~
22 ~~agency concerning the matter, the action taken by the employing~~
23 ~~agency, and that the action by the agency is final~~ The law
24 enforcement officer or reserve peace officer voluntarily quits
25 when disciplinary action was pending, under circumstances
26 warranting discharge or removal for just cause.>

27 5. Page 1, by striking lines 21 through 27 and inserting:

28 <Sec. _____. Section 80B.13A, Code 2025, is amended by adding
29 the following new subsections:

30 NEW SUBSECTION. 7. No grounds for revocation actions
31 may be maintained other than as expressly provided in this
32 section. Any actions pending before the council on grounds
33 other than expressly provided for in this section shall be
34 immediately dismissed. The rules of evidence shall apply to a
35 contested case involving the revocation or suspension of a law

1 enforcement officer's or reserve peace officer's certification.
2 NEW SUBSECTION. 8. If the law enforcement officer's or
3 reserve peace officer's certification was suspended pursuant
4 to an order of the council or settlement agreement, the
5 officer shall not be required to apply for reinstatement of the
6 officer's certification upon completion of the suspension.
7 NEW SUBSECTION. 9. The academy shall promptly provide
8 copies of the complete investigative report and records
9 concerning the law enforcement officer or reserve peace officer
10 to the officer or the officer's legal counsel upon written
11 request.
12 Sec. _____. EFFECTIVE DATE. This Act, being deemed of
13 immediate importance, takes effect upon enactment.>
14 6. Title page, line 2, by striking <certification.>
15 and inserting <certification, and including effective date
16 provisions.>
17 7. By renumbering as necessary.

HOLT of Crawford